

[doc. web n. 10097307]
Decision of November 27, 2024
Register of Decisions
n. 727 of November 27, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN today's meeting, attended by
Prof. Pasquale Stanzione, President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data, and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING Dr. Agostino Ghiglia;

PREMISE

1. Introduction.

With a complaint submitted on XX pursuant to Article 77 of the Regulation, against the Municipality of Torrenova (hereinafter the "Municipality"), Mr. XX alleged a presumed violation of the regulations regarding the protection of personal data by the Local Police Command of the Municipality.

In particular, the complainant represented that in the notice of violation notified to him for violation of Legislative Decree No. 285 of April 30, 1992 (New Highway Code), it is stated that "the processing of data takes place for purposes related to the notification of acts concerning administrative offenses. In relation to the aforementioned processing, the data subject may exercise the rights referred to in Articles 7, 8, 9, and 10 of Legislative Decree No. 196/2003. The data controller is the Municipality of Torrenova. The Data Processing Manager is the Commander of the Local Police Command [...]" and, furthermore, it is not indicated where the extended information can be found.

Additionally, following a request for access to documents, the complainant became "aware that the head of the Local Police sector of the Municipality of Torrenova, [...] had entrusted XX [...] with the overall management of sanctioning procedures under the Highway Code, indicating as the data processing manager [...] the sole administrator of XX [...]".

2. The investigative activity

Preliminarily, it is noted that, during the checks carried out to ascertain the claims made in the complaint, the Office, with note of XX (prot. n. XX), invited the Municipality to provide any useful information regarding the above-mentioned matter, pursuant to Article 157 of the Code. The Municipality, with note of XX (prot. n. XX), responded to the aforementioned request for information

stating, in particular, that:

- "following the complaints of the interested party affected by the sanction and the announced intention to undertake any actions for their protection, the Municipality promptly contacted its DPO, who, on XX stated that: 'while considering that the procedure for ascertaining and identifying the subject is carried out entirely within the entity and entrusted exclusively to local police operators, for the future, while maintaining the correctness and regularity of the service assignment, which is limited exclusively to the mailing and delivery, and having noted that the specific external responsibility of the postal company has been identified, it is deemed appropriate to add, in the document with which the violation is communicated, a statement informing of such external assignment';
- "even before receiving the provision of this Authority, the Municipality had taken steps to proceed with the integration of the information contained in the report of violations of the highway code. Moreover, drawing on the note from this Authority and the clarifications regarding the methods of preparing the information, the latter has been further adjusted so that it can be more compliant with current regulations."

With reference to the conduct of the Municipality, the Office, based on the elements acquired and the facts emerged following the investigative activity, notified the same, on XX (prot. n. XX) pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation for having acted in a manner not compliant with the principle of "lawfulness, fairness, and transparency" and in violation of Articles 5, paragraph 1, letter a), 12, and 13 of the Regulation.

The Municipality, with the aforementioned act, was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (art. 166, paragraphs 6 and 7, of the Code, as well as art. 18, paragraph 1, of Law No. 689 of November 24, 1981).

By note dated XX (prot. no. XX), the Municipality submitted a defensive memorandum, stating, in particular, that:

- "The violation is clearly unintentional and arises from the use of a model that does not include the details of an external subject to whom the responsibility for processing during the domiciliation phase has nonetheless been formally entrusted. Moreover, it is specified that the omission of the Data Processor in the verification model has been remedied, albeit belatedly, with the transmission to the interested party of the verification notice that contains all the details of the external Processor";
- "Measures have been promptly taken to fill every gap as follows:
 - a) explicit indication of the DPO
 - b) preparation of a complete information notice that complies with legal requirements
 - c) preparation of a new verification model containing the indication of the external Processor and updated legal references [...]".
- "The processing subject to the proceedings does not concern 'special data', but exclusively the information derivable from the vehicle's license plate, from the speed maintained in the specifically monitored stretch of road".

The Municipality did not request to be heard.

3. Outcome of the investigative activity.

3.1. The applicable regulations regarding personal data protection.

According to the regulations on personal data protection, public entities may process the personal data of interested parties if the processing is necessary, in general, to fulfill specific obligations or tasks provided for by laws (art. 6, paragraph 1, letter c), of the Regulation). The processing is also lawful when it is "necessary for the performance of a task carried out in the public interest or in the exercise of public powers vested in the data controller" (art. 6, paragraph 1, letter e) and paragraphs 2 and 3 of the Regulation; 2-ter of the Code).

The data controller is also required, in any case, to comply with the principles regarding personal data protection, including those of "lawfulness, fairness, and transparency", according to which personal data must be "processed lawfully, fairly, and transparently in relation to the interested party" (art. 5, par. 1, letter a) of the Regulation).

In particular, in light of the aforementioned principle of transparency, the data controller must adopt appropriate measures to provide the interested party with all the information referred to in arts. 13 (when personal data are collected from the interested party) and 14 (when personal data have not been obtained from the interested party) of the Regulation in a concise, transparent, intelligible, and easily accessible form, using clear and plain language (art. 12, par. 1, of the Regulation).

3.2. The information to the interested parties.

From the verification carried out based on the elements acquired, the statements made, and the facts emerged during the investigative activity conducted, it was found that the Municipality provided information on the processing of personal data, carried out in the procedures for verifying violations of the highway code, that does not comply with the requirements set forth by the regulations on data protection.

In this regard, it should be clarified that, in providing the interested party with the information aimed at complying with the aforementioned principle of transparency, the data controller may adopt a layered approach to “facilitate the provision of information”; in any case, regardless of the format used in this layered approach, it is necessary that “the first ‘layer’ (in other words, the main way in which the data controller initially addresses the interested party) generally conveys the most important information [...], namely the purposes of the processing, the identity of the controller, and a description of the rights of the interested party, as well as information on the most significant impact of the processing or information about the processing that could catch the interested party by surprise. [...]” (cf. “Guidelines on transparency pursuant to Regulation 2016/679” of the Article 29 Working Party for Data Protection of November 29, 2017, as amended and adopted lastly on April 11, 2018, and endorsed by the European Data Protection Board on May 25, 2018, point 38, as well as point 36 regarding layering in a digital environment). In this regard, it is also appropriate to highlight what is provided for in Recital 39 of the Regulation, which states, in particular, that: “The principle of transparency requires that the information and communications relating to the processing of such personal data be easily accessible and understandable, and that clear and plain language be used. This principle particularly concerns the information of interested parties about the identity of the data controller and the purposes of the processing, as well as further information to ensure fair and transparent processing with regard to the interested natural persons and their rights to obtain confirmation and communication of personal data processing concerning them. It is appropriate that natural persons are made aware of the risks, rules, safeguards, and rights relating to the processing of their personal data.”

personal data processing, as well as the methods of exercising their rights related to such processing [...]”. Additionally, in the case of data controllers with a digital/online presence, “an ‘appropriate measure’ to provide information aimed at transparency is to provide it through an electronic privacy statement/information. Depending on the circumstances of the collection and processing of data, the data controller may, however, need to use other methods and forms in addition to this method [...]” thus combining, in this layered approach, distinct methods and ensuring, in any case, “that the most important information [...] is always transmitted in the first method used to communicate with the data subject. [...]” (cf. Guidelines, cited, point 40).

Regarding the second “layer” (or “level”) of information, it is appropriate to highlight that this must not only be easily accessible to the data subject but must also contain all the mandatory elements pursuant to Articles 13 and 14 of the Regulation, in compliance with what is provided for by the aforementioned Article 12 of the Regulation.

That said, in the initial information reported in the format of the notice of violation, it was noted, in particular, that:

- outdated references regarding the legislation on personal data protection were indicated;
- the methods through which data subjects can access a complete “second-level” information were not indicated, where they could find further and complete elements including the contact details of the data protection officer, appointed pursuant to Article 37 of the Regulation, the parties involved in the processing of personal data (also by indicating the “any recipients or [the] any categories of recipients of personal data” pursuant to Article 13, paragraph 1, letter e) of the Regulation), the indication of the

rights recognized to data subjects pursuant to Articles 15 to 22 of the Regulation, the methods of exercising them, as well as the right to lodge a complaint with the Authority.

Regarding the updates made by the Municipality during the investigation following the request for information sent by the Authority, it should be highlighted, first of all, that the information adopted by it, through a layered approach, is still lacking some mandatory elements pursuant to Articles 13 and 14 of the Regulation (methods of exercising the rights recognized to data subjects pursuant to Articles 15 to 22 of the Regulation, as well as the right to lodge a complaint with the Authority) as these elements have not yet been adequately integrated at least in the “second-level” information to be provided to data subjects. This is because, in the aforementioned information, it is particularly indicated that for the exercise of the rights referred to in Articles 15-22 of the Regulation “any data subject may contact the data controller or the aforementioned processors or alternatively the Guarantor for the protection of personal data at the address protocollo@gpdp.it” (documentation acquired in the records).

On this extended information, it is also noted that, from the checks carried out by the Office, it does not appear to be easily accessible to data subjects, since in the “Forms” section contained on the Municipality’s official website (<https://www.comune.torrenova.me.it/>) there is a sub-section related to “Personal Data Processing” in which three distinct pieces of information concerning the processing of personal data are present, but not that related to the procedures for ascertaining violations of the Highway Code. The aforementioned information is available at the link “EU Privacy - GDPR 2016/679 - RDP-DPO (general information)” in the “Forms” section, or in the “EU Privacy - GDPR 2016/679 - RDP-DPO” section.

In light of the above considerations, it has been established that the Municipality has acted in violation of the obligation that requires the data controller to provide data subjects with prior and suitable information, as provided for by Articles 12 and 13 of the Regulation, and of the “principle of lawfulness, fairness, and transparency” referred to in Article 5, letter a) of the Regulation.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the Municipality, as the data controller, during the investigation – for the veracity of which it may be called to answer pursuant to Article 168 of the Code – although deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow the closure of the present procedure pursuant to Article 14, paragraph 1, of the Guarantor’s Regulation No. 1/2019, as none of the cases provided for by Article 11 referenced therein apply.

Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Municipality is noted, for having processed personal data in violation of Articles 5, paragraph 1, letter a), 12, and 13 of the Regulation.

The violation of the aforementioned provisions makes the administrative sanction provided for by Article 83, paragraph 5, of the Regulation applicable, pursuant to Articles 58, paragraph 2, letter i), and 83, paragraph 3, of the same Regulation, as referenced also by Article 166, paragraph 2, of the Code.

5. Corrective measures (Article 58, paragraph 2, letter d), of the Regulation).

Article 58, paragraph 2, of the Regulation grants the Authority the power to “order the data controller or the data processor to bring processing into compliance with the provisions of this regulation, if necessary, in a specific manner and within a specified period” (letter d). Acknowledging what emerged during the investigation phase and considering the circumstance that, as illustrated in the previous paragraph 3.2., despite the improvement measures taken by the Municipality, the layered information provided to the data subjects is currently still not compliant with the provisions of the data protection legislation. Therefore, it is also necessary, pursuant to Article 58, paragraph 2, letter d), of the Regulation, to order the Municipality to adopt appropriate measures to ensure:

1) that the second-level information is easily accessible and retrievable by the data subjects, by removing any obsolete and/or duplicate information and also considering organizing its institutional website to avoid multiple navigation paths to reach the aforementioned information as well as the

so-called “click fatigue” for the data subjects;

2) that the second-level information is complete with the additional mandatory elements provided for by Articles 13 and 14 of the Regulation, as described in the previous paragraph 3.2. (in particular, correct indication of the methods for exercising the rights of the data subjects under Articles 15-22 of the Regulation and the right to lodge a complaint with the Authority).

Pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code, the Municipality must also communicate to this Authority, providing adequately documented feedback, within thirty days from the notification of this measure, the initiatives undertaken to implement the above orders pursuant to the cited Article 58, paragraph 2, letter d), as well as any measures taken to ensure compliance of the processing with the data protection legislation.

6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019).

Considering that the violation of the aforementioned provisions by the Municipality occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, all the established violations – Articles 5, 12, and 13 of the Regulation – are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as recalled also by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000 (twenty million/00).

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

With specific regard to the nature and severity of the violation (Article 83, paragraph 2, letter a), of the Regulation), it should be considered that the Municipality has provided, albeit in a not complete and adequate manner, some information to the data subjects – including the complainant – regarding the processing of personal data carried out in relation to road traffic, indicating them directly in the contestation report format, but failing to indicate the methods through which to access a complete “second-level” information where the additional and complete elements provided for by Articles 13 and 14 of the Regulation could be found.

In favor of the Municipality, however, it must be considered:

- that no proven damages suffered by the data subjects are evident (Article 83, paragraph 2, letter a) of the Regulation);
- the negligent nature of the violation, given the erroneous belief on the part of the Municipality regarding the compliance of the format used with the data protection legislation (Article 83, paragraph 2, letter b) of the Regulation);
- that the processing in question does not relate to special categories of data (Article 83, paragraph 2, letter g).

In light of these circumstances, it is believed that, in this specific case, the level of severity of the violation committed by the data controller can be considered medium (cf. European Data Protection Board, “Guidelines 04/2022 on the calculation of administrative fines under the GDPR” of May 23, 2023, point 60).

That said, it is believed that, for the purposes of

****Quantification of the sanction**** must take into account, in a favorable sense for the Municipality, that the data controller is a small Municipality (approximately 4,490 inhabitants), which has no previous

relevant violations committed by the data controller (art. 83, par. 2, lett. e) of the Regulation), as well as the degree of cooperation shown by the data controller with the supervisory authority in order to remedy the violation and mitigate its possible negative effects, considering that it has integrated the "first level" information format present in the verification reports and adopted the extended information, published on its institutional website, as well as re-notifying the complainant the verification report containing the updated information (art. 83, par. 2, lett. f) of the Regulation).

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the monetary sanction at the sum of €4,000.00 (four thousand/00) for the violation of arts. 5, par. 1, lett. a), 12, and 13 of the Regulation, as an administrative monetary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and deterrent.

In this context, it is also considered that, pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Garante Regulation no. 1/2019, the publication of this section containing the injunction order on the Garante's website should proceed.

This is in consideration of the specific circumstances of the case, concerning the Municipality's failure to comply with the principle of transparency referred to in art. 5, par. 1, lett. a) of the Regulation, through the adoption of a "first level" information that lacks the elements required by the legislation on personal data protection and the failure to adopt an extended information.

Finally, it is noted that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

****ALL OF THE ABOVE CONSIDERED, THE Garante****

pursuant to arts. 57, par. 1, lett. f), and 83 of the Regulation, notes the unlawfulness of the processing carried out by the Municipality of Torrenova as outlined in the reasoning, for the violation of arts. 5, par. 1, lett. a), 12, and 13 of the Regulation;

****ORDERS****

pursuant to arts. 58, par. 2, lett. i) and 83 of the Regulation, as well as art. 166 of the Code, the Municipality of Torrenova, with legal headquarters at Via Benedetto Caputo, 98070 Torrenova (ME), C.F. 95001680834, to pay the total sum of €4,000.00 (four thousand/00) as an administrative monetary sanction for the violations indicated in the reasoning.

It is stated that the offender, pursuant to art. 166, par. 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

****ORDERS****

the Municipality of Torrenova:

- to pay the total sum of €4,000.00 (four thousand/00) in case of failure to settle the dispute pursuant to art. 166, par. 8, of the Code, according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of Law no. 689/1981;
- pursuant to art. 58, par. 2, lett. d) of the Regulation, to adopt suitable measures to ensure that, regarding the processing of personal data carried out for the purpose of verifying violations of the Highway Code, the second-level information is complete with the additional mandatory elements provided for by arts. 13 and 14 of the Regulation, described in paragraph 3.2. (in particular, correct indication of the methods for exercising the rights of the data subjects referred to in arts. 15-22 of the Regulation and the right to lodge a complaint with the Authority) and easily retrievable and accessible by the data subjects, ensuring the deletion of any obsolete and/or duplicate information and also considering organizing its institutional website to avoid multiple navigation paths to reach the aforementioned information as well as the so-called "click fatigue" for the data subjects;
- pursuant to arts. 58, par. 1, lett. a), of the Regulation and 157 of the Code, to communicate to this Authority, providing adequately documented feedback, within thirty days from the notification of this provision, the initiatives undertaken to implement the above orders pursuant to the cited art. 58, par. 2, lett. d), as well as any measures taken to ensure compliance of the processing with the legislation on personal data protection.

****DISPOSES****

pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Garante Regulation no. 1/2019, the publication of the injunction order on the Garante's website;

pursuant to art. 154-bis, par. 3 of the Code and art. 37 of the Garante Regulation no. 1/2019, the publication of this provision on the Garante's website;

pursuant to art. 17 of the Garante Regulation no. 1/2019, the annotation of this provision in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u), of the Regulation.

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, November 27, 2024

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Ghiglia

****THE SECRETARY GENERAL****

Mattei